DERICK MANUEL DUBE
versus
ROBERT KWENYUNGA KWESIGA
and
HILDA SANDE KWESIGA
and
REGISTRAR OF DEEDS & COMPANIES

HIGH COURT OF ZIMBABWE
DEMBURE J
HARARE, 8 & 9 December 2025 & 9 February 2026

Civil trial - Absolution from the Instance

Plaintiff in person
T Mpofu, for the 1st & 2nd defendants
No appearance for the 3rd defendant

DEMBURE J: At the close of the plaintiff's case, the first and second defendants (*"the defendants")* applied for absolution from the instance. The application was made in terms of rule 56(6) of the High Court Rules, 2021. The defendants seek that the application for absolution from the instance be granted with costs at the higher scale of legal practitioner and own client. The application was opposed by the plaintiff.

FACTUAL BACKGROUND

On 15 December 2020, the plaintiff, then legally represented, sued out a summons claiming payment against the defendants jointly and severally, the one paying, the other to be absolved, of the sum of US$158,284.33 or its equivalent in Zimbabwean dollars at the prevailing interbank rate on the date of judgment. The said sum is broken down as follows:

> "a) USD 9 124.00 or its equivalent in Zimbabwean Dollars at the prevailing interbank rate on the date of judgment in respect costs of repairs done to the electric security systems and accessories, borehole flushing and repairs, general repairs on roof leaks, plumping and fittings incurred by the Plaintiff towards repairing and renovating the 1st and 2nd Defendants' property namely No. 5 Fal Road, Vainona, Harare also known as Stand 259

Vainona Township of Vainona, Harare during the period stretching from 1 October 2017 up to 29 September 2019.

b) USD 26 400.00 or its equivalent in Zimbabwean Dollars at the prevailing interbank rate on the date of judgment in respect of costs of security services provided to Plaintiff from 1 October 2017 up to 23 October 2019.

c) USD 2 760.00 or its equivalent in Zimbabwean Dollars at the prevailing interbank rate on the date of judgment in respect of costs of water delivery supplies paid by the Plaintiff from the 1st October 2017 up to the 29th of September 2019.

d) USD 8 000.00 or its equivalent in Zimbabwean Dollars at the prevailing interbank rate on the date of judgment being damages suffered by the Plaintiff arising from insufficient notice to vacate from No. 5 Fal Road, Vainona, Harare given to Plaintiff by the Defendants.

e) USD 12 000.00 or its equivalent in Zimbabwean Dollars at the prevailing interbank rate on the date of judgment being damages suffered by the Plaintiff due to the failure by the Defendants to give him the right of first refusal on the sale of the leased property.

f) USD 70 000.00 or its equivalent in Zimbabwean Dollars at the prevailing interbank rate on the date of judgment in respect of damages for mental anguish and stress, hypertension and Multi-System Atrophy (MSA-P) suffered by the Plaintiff as a result of the abrupt termination of his Lease Agreement by the Defendants and the discovery that the property has been advertised for sale.

g) USD 30 000.00 or its equivalent in Zimbabwean Dollars at the prevailing interbank rate on the date of judgment in respect of current and future medical expenses which Plaintiff has incurred and will continue to incur in order to address the medical conditions described hereinabove.

h) An order directing the 3rd Defendant to place a caveat on the title deed for number 5, Fal Road, Vainona, Harare, also known as Stand 259 Vainona Township of Vainona held under Deed of Transfer No. 1698/2012 in favour of Robert Kwenyunga Kwesiga and Hilda Sande Kwesiga and to only uplift same upon completion of this matter.

i) An order declaring Number 5, Fal Road, Vainona, Harare, also known as Stand 259 Vainona Township of Vainona held under Deed of Transfer No. 1698/2012 in favour of Robert Kwenyunga Kwesiga and Hilda Sande Kwesiga to be specially executable in the event that Plaintiff succeeds in this matter.

2. Costs of suit on the Legal Practitioner and client scale."

It was not in dispute that the plaintiff and the defendants entered into a lease agreement on 1 October 2017 in respect of the defendants' immovable property called Stand 259 Vainona Township held under Deed of transfer No. 1689/2012, also known as No. 5 Fal Road, Vainona, Harare (*"the property"*) for a period of twelve (12) months. It is common cause that the defendants own this property. As part of the terms of the contract, the plaintiff was obliged to pay a monthly rent of US$750.00. The lease was for residential purposes. The defendants, at all material times, acted through an agent, a real estate agent company, known as Avondale Estate & Investment Company (Private) Limited, which was duly represented by one Linda Henderson. It

was also not in dispute that the parties signed a written lease agreement on 11 March 2019, which expired on 31 August 2019.

The plaintiff pleaded that at the time he occupied the property, it was uninhabitable due to several issues, including, *inter alia*, that there was no water, the septic tank was flooded, and the doors were without locks. He further averred that he took occupation after being assured by the defendants that the issues would be resolved immediately thereafter. It was further alleged that the defendants failed to rectify these issues for a period of almost two years. This, it was alleged, resulted in the plaintiff suffering mental stress and anguish, thereby developing hypertension, and subsequently suffering from Multi-System Atrophy (*"MSA-P"*).

It was also the plaintiff's case that, due to the continued lack of cooperation by the defendants, he had to undertake the repairs to the property at his own expense. He stated that this was the preferred option under the circumstances instead of vacating the premises. He further averred that the appointed agent inspected the improvements on 9 July 2020, whereupon the defendants accepted liability and undertook to reimburse him for all the costs thereof. It was stated that the defendants have not reimbursed him for the costs he incurred in renovating the property, as well as the water delivery charges and security costs.

He also alleged that he was shocked to receive an email from the defendants' agent stating that the property had been advertised for sale, and that he had to allow prospective purchasers to view the property. This, it was claimed, aggravated his medical condition since he had a legitimate expectation to be offered the right of refusal upon the sale of the property. He also claimed that he incurred expenses in seeking medical treatment for the medical conditions he suffered. He accordingly sought payment of damages against the defendants as stated above.

It was common cause that following the purported service of the summons at the same address where the plaintiff was staying, the plaintiff went on to obtain a default judgment against the defendants. The defendants, who are Ugandan nationals, did not enter an appearance to defend. The plaintiff sought and obtained a default judgment against them. Thus, on 8 April 2020, this court, before MANGOTA J, entered a default judgment in favour of the plaintiff in respect of all his claims. Upon learning about the Sheriff's sale in execution of their property, the defendants sought and obtained a stay of execution on an urgent basis pending the determination

of the application for rescission of default judgment in Case No. HC 3700/21. The default judgment was rescinded on 20 January 2022 before DEME J in Case No. HC 3660/21.

On 1 February 2022, the defendants filed their plea contesting the plaintiff's claim. In their plea, they denied that the property was uninhabitable when the plaintiff took occupation, as no notice was given to them about that condition. It was a term of their lease agreement that the tenant must notify them in writing of any such defects within seven (7) days of the commencement of the lease. They argued that the failure to give such notice was an acknowledgement by the plaintiff that the property was received in good order.

The defendants denied responsibility for the alleged medical condition suffered by the plaintiff. They argued that there was no link between the alleged hypertension and the lease agreement between the parties. The plaintiff would not have stayed on the property until January 2022 if the premises were uninhabitable. They also averred that it was the plaintiff's obligation to maintain the premises in good condition. They denied liability for any improvements or the repairs as they did not consent to such renovations, which consent was required to be in writing.

They denied that the plaintiff had any right of refusal in terms of their lease agreement, and no such promise was made. It was contended that the property was never sold and was not on sale up to January 2022, when the plaintiff was eventually evicted for breach of the lease agreement. They denied that the plaintiff incurred any medical expenses and that those expenses were attributed to them. They were not liable for any water charges or security for the plaintiff.
Following the closure of pleadings, a Pre-Trial Conference was held before MANDAZA J, who referred the matter to trial on 22 September 2025. The issues for trial were stated as follows:

"1.1 Whether or not it was a material term of the Lease agreement that the Plaintiff shall renovate the house, install security, have water delivered for his own use and hire security services at the expense of the 1st and 2nd Defendants.

1.2 Whether or not the Plaintiff suffered Multi-System Atrophy (MSA-P) as a result of the 1st and 2nd Defendant's action.

1.3 Whether or not the 1st and 2nd Defendants are responsible for the current and future medical expenses incurred by the Plaintiff.

1.4 Whether or not the 1st and 2nd Defendants failed to give the Plaintiff proper notice to vacate No. 5 Fal road, Vainona, Harare.

1.5 Whether or not the 1st and 2nd Defendants are entitled to costs on a higher scale."

While the above were identified as the triable issues, it is apparent from the pleadings that the damages claimed or their amount were an issue. In any case, by operation of the law, in particular r 37(8), damages claimed, or their amount, shall be deemed to be put in issue in all cases unless expressly admitted. I hasten to state that no evidence showed that the defendants expressly admitted the plaintiff's claim for the damages or their amounts thereof.

At the trial, the plaintiff was now a self-actor. I must admit that it proved a daunting task for the plaintiff to prosecute his own case. It was apparent he was overwhelmed. I even paused and queried if he understood the trial process and was able to proceed on his own as a self-actor. I also informed him of his right to seek legal assistance. He remained adamant that he was equal to the task. I had to accommodate his lack of understanding of basic rules of trial procedure and evidence, and explained the procedure where necessary for him to understand, but mindful that I could not descend into the arena. In this regard, I associate myself with the remarks by MAKARAU JCC in *Crnkovic* v *Mpofu* CCZ 01-24, where she said:

> "As observed right at the outset, the applicant is a self-actor. His right to appear before the Court in person is guaranteed by the Constitution itself.
>
> The right of all litigants to appear before this Court in person if they so elect, creates a special duty on the part of the Court. In its even handedness, the Court must not only bend over backwards to accommodate any shortcomings in the procedures adopted by the litigants and in the legal submissions they make, it must ensure that the playing field is even. This, the court must do to the extent possible but without creating the perception that it has entered the arena and has substituted itself for the self-acting litigant."

The plaintiff gave evidence in his own case and informed the court that he was no longer calling the other two witnesses he intended to call. He proceeded to close his case. Mr *Mpofu* immediately rose up to make the application for absolution from the instance. I directed that the application be presented in writing and allowed the plaintiff to file his response thereto within the period he suggested. The parties filed their papers in accordance with the case management order issued by the court with their consent.

ISSUE FOR DETERMINATION

The question I must determine is whether the plaintiff has established a *prima facie* case against the defendants.

THE LAW

The law is well-established that in an application for absolution from the instance at the close of the plaintiff's case, the test is whether there is evidence upon which a court acting reasonably could or might find for the plaintiff. The enquiry is, therefore, whether a plaintiff has made out a *prima facie* case by adducing evidence to prove all the essential elements of the claim entitling the court to find for him or her at that stage. This applicable test was enunciated in *Supreme Service Station (1969) (Pvt) Ltd* v *Fox & Goodridge (Pvt) Ltd* 1971 (1) RLR 1 (A) at 5D-E, where BEADLE CJ (as he then was) cited with approval the case of *Gascoyne* v *Paul & Hunter* 1917 TPD 170, where DE VILLIERS JP at 173 said:

> "At the close of the case for the plaintiff, therefore, the question which arises for the consideration of the court is: is there evidence upon which a reasonable man might find for the plaintiff? … The question therefore is, at the close of the case for the plaintiff, was there a prima facie case against the defendant… in other words, was there such evidence before the court upon which a reasonable man might, not should, give judgment against (the defendant)?"

The law was restated in *NMB Bank Limited* v *Formscaff (Pvt) Ltd & Ors* SC 31/22 at pp 14-15, where GUVAVA JA had this to say:

> "The law to be applied in an application for absolution from the instance is well settled. In *United Air Charters (Pvt) Ltd v Jarman* 1994 (2) ZLR 341 (S) at pg 343, the Court held that:
>
> > "The test in deciding an application for absolution from the instance is well settled in this jurisdiction. A plaintiff will successfully withstand such an application if, at the close of his case, there is evidence upon which a court, directing its mind reasonably to such evidence, could or might (not should or ought to) find for him."
>
> (see also *Oesthuizen v Standard General Versekeringsmaa & Kappy BPK* 1981 (A) 1035 (H)).
> In *Gordon Lloyd Page & Associates and Rireira & Another* 2001 (1) SA 88 (SCA) at 92 E-93 A it was held that:
>
> > "The test for absolution to be applied by a trial court at the end of plaintiff's case was formulated in *Claude neon Lights (SA) Ltd v Daniel* 1976 (4) SA 403 (A) at 409 G-H in these terms'… when absolution from the instance at the close of plaintiff's case, the test to be applied is not whether the evidence led by the plaintiff established what would finally be required to be established but whether there is evidence upon which a court applying its mind reasonably to such evidence could or might (not should or ought) find for the plaintiff…'This implies that the plaintiff has to make out a *prima facie* case in the sense that there is evidence relating to all elements of the claim…"
>
> See also *ZIMASCO* v *Tsvangirai & Ors* SC 12/20.

APPLICATION OF THE LAW

Applying the above principles, I must determine whether the plaintiff has managed to prove a *prima facie* case against the defendants. A litigant cannot plead one case and then, at trial seeks to establish another. It is trite that a party is bound by his or her pleadings, as it is from those pleadings that issues for determination would arise. An amendment of pleadings must be sought for him or her to change his or her position. The court's function is to determine the dispute arising from the pleadings and the evidence. A party who, therefore, pays little regard to his pleadings will find himself unable to prove his case. The importance of pleadings was fully explained in *Medlog Zimbabwe (Pvt) Ltd* v *Cost Benefit Holdings (Pvt) Ltd* SC 24/18 at pp 10-13, where GARWE JA (as he then was) had this to say:

> *"THE IMPORTANT PURPOSE OF PLEADINGS*
> [25] The manner in which the respondent has handled its case both *a quo* and in this Court brings to the fore the question as to what the purpose of pleadings is. In general, the purpose of pleadings is to clarify the issues between the parties that require determination by a court of law. Various decisions of the courts in this country and elsewhere have stressed this important principle.
> 25.1 In *Durbach v Fairway Hotel, Ltd* 1949 (3) SA 1081 (SR) the court remarked:-
>
> > "The whole purpose of pleadings is to bring clearly to the notice of the court and the parties to an action the issues upon which reliance is to be placed."
>
> …
> 25.3 In *Kali v Incorporated General Insurance Ltd* 1976 (2) SA 179 (D) at 182, the court remarked:
>
> > "The purpose of pleading is to clarify the issues between the parties and a pleader cannot be allowed to direct the attention of the other party to one issue and then, at the trial, attempt to canvass another."
>
> 25.4 In *Courtney–Clarke v Bassingthwaighte* 1991 (1) SA 684 (Nm), the court remarked at page 698:-
>
> > "**In any case there is no precedent or principle allowing a court to give judgment in favour of a party on a cause of action never pleaded, alternatively there is no authority for ignoring the pleadings … and giving judgment in favour of a plaintiff on a cause of action never pleaded.** In such a case the least a party can do if he requires a substitution of or amendment of his cause of action, is to apply for an amendment."
>
> …
> 25.6 In *Jowell v Bramwell-Jones* 1998 (1) SA 836 at 898 the court cited with approval the following remarks by the authors Jacob and Goldrein in their text *Pleadings: Principles and Practice* at p 8-9:
>
> > "As the parties are adversaries, it is left to each of them to formulate his case in his own way, subject to the basic rules of pleadings … **For the sake of certainty and finality, each party is bound by his own pleading and cannot be allowed to raise a different or fresh case without due amendment properly made. Each party thus knows the case he has to meet and cannot be taken by surprise at the trial. The court itself is as**

> **much bound by the pleadings of the parties as they are themselves.** It is not part of the duty or function of the court to enter upon any enquiry into the case before it other than to adjudicate upon the specific matters in dispute which the parties themselves have raised by their pleadings. Indeed, the court would be acting contrary to its own character and nature if it were to pronounce upon any claim or defence not made by the parties. To do so would be to enter the realm of speculation. … Moreover, in such event, the parties themselves, or at any rate one of them, might well feel aggrieved; for a decision given on a claim or defence not made, or raised by or against a party is equivalent to not hearing him at all and may thus be a denial of justice. The court does not provide its own terms of reference or conduct its own inquiry into the merits of the case but accepts and acts upon the terms of reference which the parties have chosen and specified in their pleadings. In the adversary system of litigation, therefore, **it is the parties themselves who set the agenda for the trial by their pleadings and neither party can complain if the agenda is strictly adhered to."**

25.7 The authors Cilliers AC, Loots C and Nel HC in their text *Herbstein and Van Winsen, The Civil Practice of the High Courts of South Africa* (5th edn, Juta and Co. Ltd, Cape Town 2009) quote the following passage from Halsbury's *Laws of England,* 4th edn (Reissue), Vol 36 para 1 in which the function of pleadings is said to be,

> "… to give a fair notice of the case which has to be met and to define the issues on which the court will have to adjudicate in order to determine the matters in dispute between the parties. It follows that the pleadings enable the parties to decide in advance of the trial what evidence will be needed. From the pleadings the appropriate method of trial can be determined. They also form a record which will be available if issues are sought to be litigated again. The matters in issue are determined by the state of pleadings at the close if they are not subsequently amended." (at page 558)
>
> …

[26] I associate myself entirely with the above remarks made by eminent jurists both in this jurisdiction and internationally. The position is therefore settled that pleadings serve the important purpose of clarifying or isolating the triable issues that separate the two litigants. It is on those issues that a defendant prepares for trial and that a court is called upon to make a determination. **Therefore, a party who pays little regard to its pleadings may well find itself in the difficult position of not being able to prove its stated cause of action against an opponent.**" (*my emphasis*)

The plaintiff sought damages against the defendants for what appears to be an alleged breach of contract. Some heads of the damages, though, as will be dealt with later on, were not very clear whether they were founded on breach of contract or delict. In para 5 of the plaintiff's declaration, the plaintiff pleaded the existence of a contract being a lease agreement concluded on 1 October 2017. However, in his evidence, the plaintiff sought to advance a new case that there were three (3) lease agreements, which he referred to as the "first lease", the "second lease" and the "third lease". That is not what he had pleaded. His evidence, however, failed to establish the terms of the lease agreement that the defendants allegedly breached, creating the basis for

any contractual liability for damages. There was no evidence to establish not only liability but also the quantum or the various amounts claimed. In his evidence in chief, the plaintiff simply threw in some documents without giving a full and proper context relative to his claims as expounded in his pleadings. It would appear he did not even appreciate his own case. The plaintiff's claims were as follows:

CLAIM FOR THE COSTS OF REPAIRS

In his pleadings, the plaintiff sought payment of US$9,124.00 for the costs of repairs he allegedly effected for the period from 1 October 2017 up to 29 September 2019. His case was simply muddled up and confusing. In para 9 of the declaration, he had pleaded that after the defendants failed to make the repairs to rectify the defects he alleged, he opted to effect the repairs at his own expense without prior consent of the defendants, as it was the better option than to vacate the premises. In his evidence in chief, he testified that a defects list was prepared upon inspection and that there was an arrangement that before or upon occupation, repairs which were key for a normal residential dwelling would be attended to. This, he alleged, would make the property habitable. He then said that when he enquired from the agent as to when the issues would be attended to, the estate agent gave him the authority to proceed to attend to those repairs if the defendants had not yet rectified them. This evidence contradicted his own pleading in para 9 that he had no option but to effect the repairs without the prior authority of the agent or the defendants.

He did not give any evidence of the repairs he allegedly made on the property. He simply referred the court to several receipts at pp 43-48, 5-56, 65, 68, 71 and 72 of the record, which were admitted together as part of Exhibit 7. All he could do was to say that those are the receipts for the costs he incurred. He made no effort to link them to his claim, explain the nature of the repairs and give a proper breakdown of the costs of the total amount claimed. When questioned under cross-examination as to what part of the alleged defect list showed that the property was uninhabitable, he referred the court to items A.1., 3 and 7 at p 81 (Exhibit 1). He could not explain how, for example, item A.1. being "watermarks on bathroom and main bedroom ceiling" could make the place uninhabitable. The item listed as A.3. stated that "No handles and locks on

3 internal doors." He admitted that there were 5 bedrooms in the house. These were also internal doors.

He also admitted that, as an alternative to item A.2., one would use a bucket. In any case, he admitted that he did not notify the defendants of any defects in writing despite admitting that he was required to do so within seven days after commencement of the lease agreement. When asked under cross-examination about the proof of the notice he gave of the defects, the plaintiff initially pointed to the document at p 81 as the notification thereof. But when it was shown that it was not his document, he moved to the document at p 82 of the record. Again, when it was said it was the agent's document, he sought to rely on the email at p 83. When it was also pointed out that the same was not his email, he finally resigned to the fact that he had no such evidence. He was thus asked:

"Q. Is that your email?
A. No, it is that of the agent.
Q. Take me to your notice
A. My notice is through the actions I took."

It was clear that he did not notify the defendants of any defects requiring repairs in terms of the lease. He did not point to any term of the contract entitling him to effect the repairs. In any case, he admitted that clause 9(b) of the signed lease prohibited any improvements or repairs without prior written consent of the landlord.

It was probed further:

'Q. You have said you did not talk to the defendants, but the agent?
A. Correct
Q. The agent is saying here that the landlord never consented to you making improvements
A. Correct
Q. You filed this document yourself
A. Correct"

The document being referred to was an email from the agent at p 91, which was part of his bundle of documents. In that email, the agent confirmed that the alleged repairs were made without permission from her office or the defendants. Clearly, despite there being no evidence of the nature of the alleged repairs made to the property, the plaintiff had no authority to make any repairs from the defendants or their agent. There was no basis upon which he could claim any

reimbursement of the alleged costs. There was no evidence that the defendants acknowledged and accepted to reimburse him the said costs as pleaded in the declaration. He could not establish that the property was uninhabitable, thereby making any improvements necessary. There was simply no evidence establishing this claim.

In any event, the plaintiff admitted that there was a Deed of Settlement (*"DOS"*) signed by the parties through their legal practitioners in the Magistrates Court suit for rental arrears. He tendered the document marked as Exhibit 4. The said DOS recorded in para 1 that:

> "**The arrear rentals as at 30 June 2020 have been set off by all the improvements done or made by the Defendant on the property** known as No. 5 Fal Road, Vainona, Harare." (*my emphasis*)

He confirmed that this compromise has an operative date of 30 June 2020. He admitted he had no document save for the summons in which he had claimed any repairs before. The DOS is clearly related to all improvements as at 30 June 2020. The claim for costs of repairs was for the period up to 29 September 2019 and was clearly part of the compromise and extinguished by the DOS. He attempted to say that he had proof that he effected repairs on 1 October 2017 and pointed out to the receipt at p 65. However, that receipt does not even identify the property where the amount of US$1,725.00 was utilised. The parties having compromised through the DOS in the Magistrates Court for his costs, the plaintiff could not sustain the same claim before this court.

There was an attempt to present a breakdown of the claim for repairs in re-examination and in the submissions in response to the application. It was clearly too late. A case cannot be made in the written submissions or in re-examination. The plaintiff not only failed to establish liability for the cost of repairs and the nature of those repairs, but also gave no evidence to establish the quantum of the costs of repairs he sought.

CLAIM FOR COSTS OF SECURITY SERVICES

The plaintiff also sought the costs of the security services he incurred for his own protection at the premises from 1 October 2017 to 23 October 2019. The claim remained largely on paper as it was not motivated in his evidence in chief. He simply said that he was submitting supporting documents for the costs he incurred and that there are receipts to that effect, but did not take the court any further. Without any evidence at all establishing the basis for this claim in

his evidence in chief, there can be nothing for the defendants to answer. The claim was completely unsubstantiated.

The plaintiff simply referred the court to several documents that he claimed were receipts for the costs without explaining them. He cannot expect the court to sift through the said documents, piecing them together to substantiate his case. The foundation of the claim ought to have been in the lease agreement itself or a specific term thereof. He did not allude to any such term of the contract entitling him to be paid security of what he admitted under cross-examination to be US$1,050.00 per month. There was no specific clause in any of the contracts signed by the parties that supported such a contractual obligation. It would also be absurd on common business sense to imply such a contractual term that the plaintiff, who was paying rent of US$750.00 per month would also be provided with security services at US$1,050.00 per month. More fundamentally, when he was struggling to pay that monthly rental and was in arrears. Although he alleged the arrears were a mirage, he admitted that the DOS was duly signed on his behalf, accepting that he had breached the lease agreement by failing to pay the rentals due.

Accordingly, besides failing to establish the basis of this claim, there was also no attempt made to establish the quantum of the alleged security costs. The figure of US$26,400.00 claimed in the summons remained thump suck and was merely stated in the summons and nothing more. Nothing arises for the defendants to be placed on their defence.

CLAIM FOR COSTS OF WATER SUPPLIES

It was the plaintiff's pleaded case that he was entitled to payment of US$2,760.00 for the costs of the water he paid for while staying at the defendants' property. As with the other costs above, the claim was not motivated by the plaintiff when he gave his evidence. He did not address the court on the terms of the contract of lease establishing the obligation for the defendants to pay for the water he used. The basis for the claim was not stated in his evidence. He simply referred to documents which he said are receipts for the costs incurred, without specifically speaking to any of the receipts in respect of the claim for water supplies.

The court cannot assist a litigant to prove its own case. Our adversarial system of justice requires that the court be an impartial umpire or referee. That the plaintiff was a self-actor would

not justify the court entering into the arena. The plaintiff had no idea of what he was expected to do in the prosecution of his case. At one time, he had to be reprimanded after he started reading from some prepared notes while giving evidence on the witness stand. He could not understand that once he is on the witness stand, he takes the position of a witness who is required to give oral testimony under oath. He is not expected to read from prepared notes. The law would permit, though subject to the leave of the court, for a witness to refresh his memory from a relevant document. Thus, Twomey *et al., A Practical Approach to Evidence for Judicial Officers: Common law sources and African applications*, University of South Africa, 2023, at p 86, correctly stated that:

> "**The evidence given by witnesses in court should come from their own memory**. However, **if the witness needs to refresh their memory**, owing to a delay between the event in question and the date of the testimony**, they may be permitted to do so if they are to be making reference to a document made contemporaneously with the events described in it,** and which the witness actually compiled personally or verified for its accuracy at a time when the facts recorded therein were fresh in their memory. The witness would need to confirm that the document is an accurate record of the facts it contains. **However, the document itself does not become evidence; the evidence given is still the witness's oral testimony**." (my emphasis)

Under cross-examination, the plaintiff, when asked why he was suing for the water he used, said it was part of the lease. He could not produce any lease signed by the parties with such an obligation accepted by the defendants, nor was there evidence of a verbal agreement to that effect. When he was referred to the lease at p 84, he accepted that he had no claim for water under what he termed the 'second lease'. He alleged that the obligation was imposed in the 'first lease', but when challenged to show the court any such first lease, he could only say: "It all goes to communication that was there. There is no signed lease agreement." Clearly, there was no evidence showing that the plaintiff had a valid claim for any costs for the water he allegedly used, or establishing the amount due for such costs. The claim was unsustainable and utterly without any foundation, like the other claims.

CLAIM FOR DAMAGES FOR INSUFFICIENT NOTICE TO VACATE THE PROPERTY

There was no evidence to establish this claim. It was simply pleaded in the declaration that he was seeking payment of US$8,000.00 as damages for insufficient notice to vacate the

property. When he testified, he was silent about this claim. It cannot, therefore, be sustainable. Nothing arises for the defendant to answer.

In any case, under cross-examination, he denied that he was evicted from the property. He said that he left the premises voluntarily on 30 November 2020, but admitted that he had no evidence to establish that. He claimed that there was a third lease agreement constituted by the documents at pp 88, 93, 94 and 95 of the record. When taken to each such document, it became apparent that the documents he relied upon did not show that the defendants breached any contractual obligation by giving him the notice to vacate the premises. He did not establish that which he termed sufficient notice or the notice period the parties agreed upon, and was not complied with. He was everywhere under cross-examination, seeking to cling to anything he could find to remake a case he had not set out in his evidence in chief. Unfortunately, the result is clear that no basis for the claim was established. It did not exist at all. Neither was there evidence adduced to establish the quantum of the damages under this head.

CLAIM FOR DAMAGES FOR ALLEGED FAILURE TO GIVE PLAINTIFF THE RIGHT OF FIRST REFUSAL

On this head, the plaintiff claimed US$12,000.00. The plaintiff gave no evidence on this claim, and that should be the end of the matter. A *prima facie* case is established from the evidence, not from pleadings. There was absolutely nothing said about this claim in his examination in chief. In any case, a right of first refusal arises from an agreement. It cannot simply arise because one thinks he deserves it. The legal position was remarkably set out in *Eastview Gardens Residents Association v Zimbabwe Reinsurance Corporation (Ltd) & Ors* SC 90/02 at pp 7-8, where MALABA JA (as he then was) said:

> "A right of first refusal or pre-emption is created when in an agreement one party (the grantor) undertakes that when he decides to sell his property he will first give the other party (the grantee) the opportunity of refusing or buying the property at a price equal to that offered by another person. The grantor is then said to be under an obligation to do, at the time he sells the property, what he voluntarily bound himself to do, that is, offer the property to the grantee first at a price equal to that offered by a third party or which he is prepared to accept from any other would-be buyer. **The grantee is said to have acquired the correlative right to have the property offered to him first so that he can match the price offered by the third party or refuse the offer**. The grant does not entail an existing offer because it conditions it. See *Manchester Ship Canal Company v Manchester Racecourse Company* [1901] 2 Ch 37 at 46-47; *Sher v Allan* 1929 OPD 137 at 140-142; *Cohen v Behr* 1946 CPD 942 at 946-947; *Bellairs v Hodnett & Anor* 1978 (1) SA

1109 at 1138F-1139H; *Hirschowitz v Moolman & Ors* 1983 (4) SA 1 at 6 A-H; *Sotoriou v Retco Poyntons (Pty) Ltd* 1985 (2)SA 922 at 932 B-G; *Madan v Macedo Heirs & Anor* 1991 (1) ZLR 295 (S) at 302A-303D.

It is clear from all these decided cases that a right of pre-emption can only be created by contract or agreement between the grantor and the grantee. Where breach of the right is alleged as a cause of action and its existence is denied, the *onus* is on the plaintiff to show that there was an agreement between the parties in terms of which the defendant undertook to offer to him the property at a price equal to that offered by another." (*my emphasis*)

In *casu*, there was no agreement creating the right of first refusal that was shown to exist. There was no evidence of any terms of the lease creating such a right. I also agree with Mr *Mpofu* that the right of first refusal cannot even arise in this case, as it was common cause that the property was not sold. The nature of the right of first refusal was also explained in *Sawyer* v *Chioza & Ors* 1999 (1) ZLR 203 (HC), where GWAUNZA J (as she then was) said:

"I consider it pertinent at this juncture to establish what is meant by a right of first refusal. In Cooper's Landlord and Tenant, the learned author states that the right of first refusal is synonymous with the right of pre-emption. He explains that an agreement between the lessor and the lessee that the latter shall have the first right of purchase, should the grantor wish to sell, gives rise to an enforceable right. To be binding, such an agreement, being an agreement of pre-emption, must contain a price which is certain or ascertainable. He continues at p 141:

> "A price is ascertainable where the grantee has the right to purchase at the price for which the grantor is prepared to sell to a third party. In effect, the price is then fixed by a third party … An agreement of pre-emption does not compel the grantor to sell it only compels him to give the grantee the right to purchase if he (the grantor) proposes to sell."

Kerr The Law of Sale and Lease adds the following:

> "And consequently, it too prevents him (the grantor) from selling to third persons during the existence of the right."

Cooper Landlord and Tenant at p 143 aptly summarises the grantor's obligations in relation to the exercise by the grantee of his right of pre-emption:

> "An agreement of pre-emption contains both a negative and a positive element. The negative element is that the grantor is restrained from selling to a third party; the positive element is once he is prepared to sell, he is under a positive obligation to sell to the grantee."

In my view, the above captions describe the essential elements of the right of pre-emption (or first refusal) in terms that are both clear and unambiguous. **My reading of these requirements is that the following steps must, in that sequence, be followed in the exercise of a right of pre-emption:**

(a) a specific third party offers to buy the property at a given price;

(b) the grantor is prepared to sell at that price; but

(c) before accepting the buyer's offer, the grantor reverts to the grantee of the right of pre-emption, informs him of his decision to sell at the price offered by the particular buyer and asks him (grantee) to exercise his right of first refusal."

> Thereafter, the outcome, in terms of who ends up buying the property, depends on the grantee's decision on whether to exercise his right. If he chooses to exercise it, the grantor is obliged to sell the property to the grantee. If the latter chooses not to exercise his right of first refusal, then the property is sold to the third party. The whole arrangement pre-supposes transparency and honest dealing between grantor and grantee…" (*my emphasis*)

There was no evidence establishing the basis for this claim for a right of first refusal. It was not shown that there was a particular third party who was offered to buy the property at a given price and that the defendants proceeded with a sale without allowing him to exercise his right of first refusal. The basis for the alleged damages and the amount thereof was, therefore, not set out. In the absence of any evidence substantiating this claim, including the amount thereof, nothing arises for the defendants to rebut.

CLAIM FOR DAMAGES FOR MENTAL ANGUISH AND STRESS, HYPERTENSION & MSA-P

In his declaration, the plaintiff also sought damages for what he termed mental anguish and stress, hypertension and Multi-System Atrophy (*"MSA-P"*) in the sum of US$70,000.00. The basis of this claim is confusing. It would appear para 8 of the declaration contains the averments setting out the basis for this claim. But when one considers that paragraph, the cause for the said mental stress and anguish allegedly leading to hypertension and MSA-P is pleaded as the failure or refusal by the defendants to rectify the defects on the property, after it remained as it was for a period of two years. But when one considers the prayer in para 14(f) of the declaration, what caused the damages completely changes to be "the abrupt termination of his lease agreement by the defendants and the discovery that the property had been advertised for sale." There is no doubt, therefore, that there was no clear legal cause of action pleaded for the claim.

In his evidence in chief, the plaintiff did not lead any evidence on this claim. All he did was to produce some letters allegedly authored by some medical doctors. These were not admitted as evidence with his consent. He did not lead evidence to establish that he suffered from the said medical conditions and that it was caused by either the failure to attend to the repairs or the alleged abrupt termination of the lease agreement. Expert evidence was also indispensable for the plaintiff to establish that he suffered mental anguish and developed

hypertension and MSA-P. There was, therefore, no connection made between the alleged conduct of the defendants and the alleged damages.

Under cross-examination, he conceded that para 8 and the prayer in para 14(f) are saying different things. When questioned, then where the claim in para 14(f) was arising from, he could only say "it stands on its own". He could not even point to any documentary evidence showing when the alleged hypertension started. He could not explain clearly under cross-examination how, upon being told to vacate someone's property or that one is given a property which requires attention on some issues, would cause hypertension and MSA-P. The claim, with respect, was preposterous. While at this stage the court must be extremely chary not to evaluate and discard the plaintiff's evidence after hearing only from one party, this case indeed falls into a special category where his testimony was manifestly unreliable and unacceptable. See *Katerere v Standard Chartered Bank Zimbabwe Ltd* HB 51/08, where it was stated that:

> "The court should be extremely chary of granting absolution at the close of the plaintiff's case. The court must assume that **in the absence of very special considerations, such as the inherent unacceptability of the evidence adduced**, the evidence is true. The court should not at this stage evaluate and reject the plaintiff's evidence. The test to be applied is not whether the evidence led by the plaintiff establishes what will finally have to be established. Absolution from the instance at the close of the plaintiff's case may be granted if the plaintiff has failed to establish an essential element of his claim - *Claude neon Lights (SA) Ltd* v *Daniel* 1976 (4) SA 403(A); *Marine & Trade Insurance Co Ltd* v *Van Der Schyff* 1972 (1) SA 26(A); *Sithole* v *PG Industries (Pvt) Ltd* HB 47-05". (*my emphasis*)

From the confused averments in para 8 and 14(f) of the plaintiff's declaration, it was not clear whether the damages were claimed from a breach of contract or delict. A proper case for such damages was not properly pleaded. If the claim was delictual, which was not properly pleaded, it was held by the Supreme Court in *Delta Beverages (Cited as a division of Delta Corporation Ltd) v Rutsito* SC 42/13 at p 8 that:

> "The position may therefore be accepted as settled that it is not every complaint that warrants an award of damages. **The complaint must lead to a recognised medical condition which would require treatment before such damage can be cognizable in terms of the law**." (*my emphasis*)

It was incumbent on the plaintiff to adduce medical evidence on his medical condition, which he claimed he suffered and required treatment for.

If it is taken that the damages are for breach of contract, it is settled in our common law that only patrimonial loss can be recovered on the ground of breach of contract. See *Administrator, Natal* v *Edouard* 1990 (3) SA 581 (A). In that case, the South African Appellate Division declined an invitation to extend the law to provide for the recovery of non-patrimonial loss on the ground of breach of contract. At p 386, the court defined and explained non-patrimonial loss or damage as "the diminution, as the result of a damage-causing event, in the quality of highly personal (or personality) interests of an individual in satisfying his or her legally recognised needs, but which does not affect his or her patrimony." The court was not impressed nor persuaded by English cases, such as *Jarvis* v *Swan's Tours Ltd* [1973] 1 All ER 71 (CA), where the English court held that contractual damages for vexatious and distress can be recovered if the hotel accommodation did not meet the standards agreed upon. The Appellate Division further refused to extend the common law to permit contractual damage to any type of intangible loss, and commented that such an extension can only be effected by the legislature.

Accordingly, any non-patrimonial loss resulting from breach of contract, such as discomfort, inconvenience or any other sentimental loss and even pain and suffering, will have to be recovered on the ground of delict, in which case fault would be required to be established. See also Huyssteen *et al*, Contract: General Principles, 6th ed, 2020, at pp 465-466. The South African law has remained steadfast that it is incapable of awarding damages against a party who is in breach of contractual obligation to provide convenience and comfort, humiliation or other sentimental loss. See also RH Christie, *The Law of Contract in South Africa,* 5th ed, 2006, at p 346. Such a claim would not be legally possible in South Africa. The South African legal position reflects our common law. It is trite, therefore, that no claim can be made for non-patrimonial damages for breach of contract. Such a claim can only be founded in delict.

The plaintiff's claim for damages for mental anguish, even if taken as founded on a breach of contract, is not a recognisable legal claim. Accordingly, besides that, there was no evidence to establish this claim, and the quantum claimed of US$70,000.00, the claim being one for sentimental loss, could not be founded on a breach of contract. Even if it was in delict, there was no evidence establishing the fault and causation requirements. No case was proved against the defendants, warranting that they be put to their defence.

CLAIM FOR CURRENT AND FUTURE MEDICAL EXPENSES

Connected to the claim for damages for mental anguish and the alleged medical conditions was the claim for current and future medical expenses in the sum of US$30,000.00. The plaintiff did not speak to this claim in his evidence in chief. No evidence was presented on this claim. No reasonable court might find for the plaintiff at this stage in the absence of evidence establishing liability for the alleged mental anguish, hypertension and MSA-P. The plaintiff also told the court that he had receipts in respect of future medical expenses, but admitted that they are not part of his bundle of documents. He said they bear the date after the summons. There was, therefore, no evidence for this court to act upon relating to the alleged medical expenses. Even the quantum of the damages was not addressed. Further, without any medical evidence on the alleged medical complaint and the alleged damage, the court has no option but to find that the plaintiff failed to establish a *prima facie* case.

DISPOSITION

I am satisfied that the plaintiff failed to prove a *prima facie* case against the defendants. Putting them on their defence would serve no useful purpose. Nothing arises for them to rebut. This case was a complete waste of the court's time and judicial resources, which could have been used for worthy causes. Litigants must take court proceedings seriously and desist from abusing the court process. The plaintiff's case was undoubtedly "unsustainable, manifestly groundless or utterly hopeless and without foundation", and, therefore, frivolous or vexatious. See *Rogers* v *Rogers and Anor* 2008 (1) ZLR 330(S) at 337E-G. Absolution from the instance ought to be granted.

As for costs, they remain a matter within the discretion of the court. There is no reason to depart from the general principle that costs shall follow the event. It is trite that costs on a legal practitioner and client scale are only granted in exceptional circumstances. I find that such exceptional circumstances exist for the plaintiff to be mulcted with punitive costs. The claim is frivolous or vexatious. It was not seriously motivated by the plaintiff himself. The resultant unnecessary legal process has caused the defendants to suffer unwarranted legal expenses. As the successful litigants, the defendants must be able to recover their costs. I, therefore, agree with Mr *Mpofu* that the claim is "indubitably vexatious" and an abuse of the court process and the

defendants. There is no reason why the court must not, therefore, "come hard on this kind of buffoonery." Costs on a legal practitioner and client scale are warranted in the circumstances. Accordingly, I make the following order:

1. The application for absolution from the instance be and is hereby granted with costs on a legal practitioner and client scale.

DEMBURE J: ……..

Gill, Godlonton & Gerrans, first and second defendants' legal practitioners